



August 20, 2013

Mr. Daniel White  
City Attorney  
2101 O'Neil Avenue  
Cheyenne, WY 82001

Mr. White,

Due to the fact that the Cheyenne Regional Airport Board is a joint powers board comprised of appointees from both the City of Cheyenne and the County of Laramie, the Federal Aviation Administration requires that both of the governing bodies, as well as the Airport Board, approve Federal grants for Airport improvements. As such, attached for your review and approval for consideration during the next meeting of the Governing Body is a grant from the Federal Aviation Administration (FAA)

Grant Number 3-56-0005-50, in an amount not to exceed \$300,000 will be used by the Airport towards the creation of a Sustainability Management Plan. Sustainability Management Plans utilize baseline assessments of both environmental resources and community outreach to create a document that accomplishes the three following goals:

- 1) Overall reduction in environmental impacts
- 2) The maintaining of high and stable levels of economic growth
- 3) The achieving of "social progress," a broad set of actions that ensure that organizational goals are achieved in a way that is consistent with the needs and values of the local community.

The FAA has long been involved in environmental sustainability actions at airports, usually through sound level reduction and air quality initiatives. It has only been in the last three or four years that they have started funding sustainability master plans and sustainability management plans at airports. In addition to this cover letter, I am also including a copy of the letter of interest that the Airport sent to the FAA.

The \$300,000 not to exceed value that the Airport is requesting approval of represents the Federal share of the total project cost, estimated to be \$320,000 (93.75%). The remaining project costs are funded through WYDOT Aeronautics at \$12,000 (3.75%) and the Airport at \$8,000 (2.5%).

It should also be noted that, at this time, I only have a draft copy of the grant. This is a process that was started several years as a result of short turnaround times required by late FAA release of grant funding. Those short turnaround times would leave the Airport, and the governing bodies, in the unenviable

position of either limiting the standard public process for grant approval or losing out on significant capital funding. To combat this, the Airport worked with the FAA to get a draft grant that, in essence, provided all applicable terms and conditions, except the final dollar amount. Any changes to the document outside of the dollar amount (provided it did not exceed the not to exceed value) would result in the need to go back in front of the governing bodies. The actual grant documents should be available in the near future.

I hope that I have answered any questions that you may have on this grant. Should any additional questions arise, feel free to give me a call at 634-7071 or drop me an email at [DHaring@cheyenneairport.com](mailto:DHaring@cheyenneairport.com).

Sincerely,

A handwritten signature in blue ink, appearing to read 'D. Haring', with a stylized flourish at the end.

David S. Haring, C.M.  
Director of Aviation  
Cheyenne Regional Airport

P.O. Box 2210  
200 E. 8th Avenue, Suite 203  
Cheyenne, WY 82003



Ph: 307/634-7071  
Fax: 307/632-1206  
[www.cheyenneairport.com](http://www.cheyenneairport.com)

March 27, 2013

Ms. Janell Barrilleaux  
Environmental Program Manager  
FAA – Northwest Mountain Region  
1601 Lind Ave., SW  
Renton, WA 98057

Ms. Barrilleaux,

On behalf of the Cheyenne Regional Airport, please accept this letter as an enthusiastic notice of interest by the Airport in being considered for a grant towards the evaluation and creation of a sustainability management plan.

The Cheyenne Regional Airport was founded on September 8, 1920 during a time when aviation was still in its adolescence. Originally created as a result of the needs of the Transcontinental Airmail Route, the Airport has seen significant changes over the course of its 92 year history. The airmail routes of the 1920s gradually paved the way for passenger service to and from Cheyenne. As the home base for United Airlines in the 1930's and early 1940s, Cheyenne was a world hub for aviation, featuring over 24 daily arrivals and departures. The wants of elite passengers were trumped by needs of the US Military during World War II when Cheyenne was the home to a large, B-17 modification center. Post war, the Airport incurred a period of decline as aviation technology changed and planes received enhanced performance, no longer requiring the need to have a staging area prior to crossing the Rocky Mountains. Since that time, the Cheyenne Regional Airport has continued to provide the residents of Southeastern Wyoming and Northern Colorado with varying amounts of air service. Additionally, in an effort to foster the self sustaining financial goals mandated by FAA grant assurances, the Airport has developed several non aviation use business properties aimed at long term financial stability.

As the Capital of the State of Wyoming, the Cheyenne Regional Airport remains an important asset to regional businesses and residents alike. Encompassing just over 1,000 acres, the Airport is the home base of a regional air service provider in Great Lakes Airlines and the home of the Wyoming Air National Guard and 12 C-130s. The military and airline presence in Cheyenne, coupled with the fact that Cheyenne serves as a primary diversion airport for Denver International Airport, are significant reasons why the Cheyenne Regional Airport has one of the highest operational counts of any of the public use airports in Wyoming with just over 50,000

operations per year. Historically, the Airport has been staffed by 9 full time personnel and one part time personnel. However, in February 2012, the Airport took over operation of the field's only FBO, now called Legend Aero Serve. As a result of that acquisition, staffing now sits at 14 full time personnel and 3 part time personnel.

The Cheyenne Regional Airport gained an enthusiasm for being part of sustainability analysis after reviewing the FAA's website on Airport Sustainability. Sustainability too often carries a stereotype of being limited to environmental concerns. While environmental sustainability is both significant and important, the FAA points out that sustainability must carry over to both economic and social impacts. The Airport believes it has viable needs and analysis points in all three areas:

#### *Environmental Sustainability*

As the cost of gas and electricity has increased, so too has the desire to identify and utilize renewable sources of energy. As one of the windiest areas in the Nation, developers have begun to hone in on Cheyenne as a prime area for wind energy developments. The Airport has worked closely with local planners and developers to help encourage this development while also protecting airspace. Additionally, the Airport is in the early (20%) design stages of a new terminal that will replace the existing 50 year old terminal. The Board of Directors has already made it known that even if the facility is not LEED certified, they would like as many green concepts incorporated into the facility as possible, including the use of natural light and alternative sources of heat. The anticipated construction of the terminal is set to take place in 2017/2018. With construction still 4-5 years away, now is the perfect time to evaluate those long term, sustainability measures that could be either incorporated in the design now or planned for in the future.

#### *Fiscal Sustainability*

With the significant fluctuations that take place within the aviation industry, Airports are constantly on the lookout for alternative sources of revenue, or expense reductions, that can aid in the ability of the Airport to stand the test of time. The Cheyenne Regional Airport has accomplished this through long term property development and land leases. These non aviation developments represent approximately 60-65 percent of the Airport's annual revenue and, as such, have allowed the Airport tremendous flexibility in the enhancement of Airport facilities. However, while these developments enhance revenue, they also have the negative impact of increasing overall liabilities and expenses as aged facilities need repairs or improvements. Presently, the Airport finds itself in a position where an asset that draws in approximately \$144,000 annually is in need of a new roof, with an estimated cost of approximately \$500,000. Failure to replace this roof will ultimately lead to the inability to lease the property and could potentially result in the tearing down of the asset. To avoid situations like these from sprouting up, long range cash flow projections and capital replacement costs need to be evaluated in order to protect the fiscal sustainability of the Airport. While the

availability of assets leads to enhanced economic growth potential, aging assets without planning for their repair or replacement can ultimately lead to exactly the opposite.

*Social Sustainability (Integration)*

Over the last several years, the Airport has focused its "marketing" and outreach in a way that is mutually beneficial for both the Airport and the community. Utilization of marketing dollars towards sponsorships of programs such as Newspapers in Education, which provides one classroom with newspapers for one year, and United Way events helps maintain awareness of the Airport and its services while also providing aid to valuable community programs. Furthermore, the Airport has also increased its involvement with the military over the last several years through a variety of sponsorships and involvement with honorary commanders programs. This ongoing integration is vital to help both the community support the Airport and the Airport to support the community.

Through participation in sustainability management planning, it is the Airport's hope that we will be able to provide both long range goals and a "road map," of sorts, that can be used in conjunction with upcoming master plan updates, ALP updates and facility designs to help the Airport plan for long range success in the face of current and projected dynamic challenges.

Should you have any questions, feel free to contact me at (307) 634-7071 or via email at [dharing@cheyenneairport.com](mailto:dharing@cheyenneairport.com).

Sincerely,

A handwritten signature in dark ink, appearing to read 'D. Haring', written over a faint circular background.

David S. Haring, C.M.  
Director of Aviation

U.S. Department  
of Transportation

Approved as to  
form only:  
BT  
Date: 8/21/13

## GRANT AGREEMENT

Federal Aviation  
Administration

---

### Part I - Offer

---

Date of Offer: DRAFT  
Airport: Cheyenne Regional/Jerry Olson Field  
Project Number: 3-56-0005-50  
Contract Number: DOT-FA13NM-####  
DUNS Number: 05811170

To: City of Cheyenne and County of Laramie, Wyoming and Cheyenne Airport Board  
(herein called the "Sponsor")

From: The United States of America (acting through the Federal Aviation Administration, herein called the  
"FAA")

Whereas, the Sponsor has submitted to the FAA a Project Application dated DATE for a grant of Federal funds for a project at or associated with Cheyenne Regional/Jerry Olson Field, which Project Application, as approved by the FAA, is hereby incorporated herein and made a part hereof; and

Whereas, the FAA has approved a project for the Airport (herein called the "Project") consisting of the following:

#### Sustainable Management Plan

all as more particularly described in the Project Application.

**NOW THEREFORE**, pursuant to and for the purpose of carrying out the provisions of Title 49, United States Code, as amended, herein called "the Act", and in consideration of (a) the Sponsor's adoption and ratification of the representations and assurances contained in said Project Application and its acceptance of this offer as hereinafter provided, and (b) the benefits to accrue to the United States and the public from the accomplishment of the Project and compliance with the assurances and conditions as herein provided, **THE FEDERAL AVIATION ADMINISTRATION, FOR AND ON BEHALF OF THE UNITED STATES, HEREBY OFFERS AND AGREES** to pay, as the United States share of the allowable costs incurred in accomplishing the Project, 93.75 per centum thereof.

This Offer is made on and **SUBJECT TO THE FOLLOWING TERMS AND CONDITIONS:**

**Conditions**

1. The maximum obligation of the United States payable under this offer shall be \$###,###. For the purpose of any future grant amendments, which may increase the foregoing maximum obligation of the United States under the provisions of Section 47108(b) of the Act, the following amounts are being specified for this purpose:  
  
    \$###,### for planning  
    \$0 for airport development and noise program implementation
2. The allowable costs of the project shall not include any costs determined by the FAA to be ineligible for consideration as to allowability under the Act.
3. Payment of the United States share of the allowable project costs will be made pursuant to and in accordance with the provisions of such regulations and procedures as the Secretary shall prescribe. Final determination of the United States share will be based upon the final audit of the total amount of allowable project costs and settlement will be made for any upward or downward adjustments to the Federal share of costs.
4. The sponsor shall carry out and complete the Project without undue delay and in accordance with the terms hereof, and such regulations and procedures as the Secretary shall prescribe, and agrees to comply with the assurances which were made part of the project application.
5. The FAA reserves the right to amend or withdraw this offer at any time prior to its acceptance by the sponsor.
6. This offer shall expire and the United States shall not be obligated to pay any part of the costs of the project unless this offer has been accepted by the sponsor on or before **DATE**, or such subsequent date as may be prescribed in writing by the FAA.
7. The Sponsor shall take all steps, including litigation if necessary, to recover Federal funds spent fraudulently, wastefully, or in violation of Federal antitrust statutes, or misused in any other manner in any project upon which Federal funds have been expended. For the purposes of this grant agreement, the term "Federal funds" means funds however used or disbursed by the Sponsor that were originally paid pursuant to this or any other Federal grant agreement. It shall obtain the approval of the Secretary as to any determination of the amount of the Federal share of such funds. It shall return the recovered Federal share, including funds recovered by settlement, order or judgment, to the Secretary. It shall furnish to the Secretary, upon request, all documents and records pertaining to the determination of the amount of the Federal share or to any settlement, litigation, negotiation, or

other efforts taken to recover such funds. All settlements or other final positions of the Sponsor, in court or otherwise, involving the recovery of such Federal share shall be approved in advance by the Secretary.

8. The United States shall not be responsible or liable for damage to property or injury to persons which may arise from, or be incident to, compliance with this grant agreement.

#### **Special Conditions**

9. The sponsor will carry out the project in accordance with policies, standards, and specifications approved by the Secretary including but not limited to the advisory circulars listed in the *Current FAA Advisory Circulars Required For Use In AIP Funded and PFC Approved Projects*, dated April 16, 2013, and included in this grant, and in accordance with applicable state policies, standards, and specifications approved by the Secretary.
10. It is mutually understood and agreed that if, during the life of the project, the FAA determines that the maximum grant obligation of the United States exceeds the expected needs of the Sponsor by \$25,000.00 or five percent (5%), whichever is greater, the maximum obligation of the United States can be unilaterally reduced by letter from the FAA advising of the budget change. Conversely, if there is an overrun in the total actual eligible and allowable project costs, FAA may increase the maximum grant obligation of the United States to cover the amount of the overrun not to exceed the statutory percent limitation and will advise the Sponsor by letter of the increase. It is further understood and agreed that if, during the life of the project, the FAA determines that a change in the grant description is advantageous and in the best interests of the United States, the change in grant description will be unilaterally amended by letter from the FAA. Upon issuance of the aforementioned letter, either the grant obligation of the United States is adjusted to the amount specified or the grant description is amended to the description specified.
11. The Sponsor agrees to submit a Federal Financial Report (FAA Form SF-425) for all open grants to the Airports District Office within 90 days following the end of each Federal fiscal year and with each Final Project Closeout Report.  
  
The Sponsor further agrees to submit an Outlay Report and Request for Reimbursement (FAA Form SF-271 for construction projects) or Request for Advance or Reimbursement (FAA Form SF-270 for non-construction projects) to the Airports District Office within 90 days following the end of each Federal fiscal year and with each Final Project Closeout Report.
12. In accordance with Section 47108(b) of the Act, as amended, the maximum obligation of the United States, as stated in Condition No. 1 of this Grant Offer:
  - a. may not be increased for a planning project;
  - b. may be increased by not more than 15 percent for development projects;
  - c. may be increased by not more than 15 percent for land projects.
13. The FAA, in tendering this Offer on behalf of the United States, recognizes the existence of an Agency relationship between the Sponsor, as principal, and the State of Wyoming, Division of Aeronautics, as agent. The Sponsor agrees that it will not amend, modify, or terminate said Agency Agreement without prior written approval of the FAA or its designated representative.
14. **TRAFFICKING IN PERSONS:**

**a. Provisions applicable to a recipient that is a private entity.**

1. You as the recipient, your employees, subrecipients under this award, and subrecipients' employees may not—
  - i. Engage in severe forms of trafficking in persons during the period of time that the award is in effect;
  - ii. Procure a commercial sex act during the period of time that the award is in effect; or
  - iii. Use forced labor in the performance of the award or subawards under the award.
2. We as the Federal awarding agency may unilaterally terminate this award, without penalty, if you or a subrecipient that is a private entity –
  - i. Is determined to have violated a prohibition in paragraph a.1 of this award term; or
  - ii. Has an employee who is determined by the agency official authorized to terminate the award to have violated a prohibition in paragraph a.1 of this award term through conduct that is either—
    - A. Associated with performance under this award; or
    - B. Imputed to you or the subrecipient using the standards and due process for imputing the conduct of an individual to an organization that are provided in 2 CFR part 180, "OMB Guidelines to Agencies on Governmentwide Debarment and Suspension (Nonprocurement)," as implemented by our agency at 49 CFR Part 29.

**b. Provision applicable to a recipient other than a private entity. We as the Federal awarding agency may unilaterally terminate this award, without penalty, if a subrecipient that is a private entity--**

1. Is determined to have violated an applicable prohibition in paragraph a.1 of this award term; or
2. Has an employee who is determined by the agency official authorized to terminate the award to have violated an applicable prohibition in paragraph a.1 of this award term through conduct that is either--
  - i. Associated with performance under this award; or
  - ii. Imputed to the subrecipient using the standards and due process for imputing the conduct of an individual to an organization that are provided in 2 CFR part 180, "OMB Guidelines to Agencies on Governmentwide Debarment and Suspension (Nonprocurement)," as implemented by our agency at 49 CFR Part 29.

**c. Provisions applicable to any recipient.**

1. You must inform us immediately of any information you receive from any source alleging a violation of a prohibition in paragraph a.1 of this award term.
2. Our right to terminate unilaterally that is described in paragraph a.2 or b of this section:
  - i. Implements section 106(g) of the Trafficking Victims Protection Act of 2000 (TVPA), as amended (22 U.S.C. 7104(g)), and
  - ii. Is in addition to all other remedies for noncompliance that are available to us under this award.
3. You must include the requirements of paragraph a.1 of this award term in any subaward you make to a private entity.

**d. Definitions. For purposes of this award term:**

1. "Employee" means either:
  - i. An individual employed by you or a subrecipient who is engaged in the performance of the project or program under this award; or
  - ii. Another person engaged in the performance of the project or program under this award and not compensated by you including, but not limited to, a volunteer or individual whose services are contributed by a third party as an in-kind contribution toward cost sharing or matching requirements.
2. "Forced labor" means labor obtained by any of the following methods: the recruitment, harboring, transportation, provision, or obtaining of a person for labor or services, through the use of force, fraud, or coercion for the purpose of subjection to involuntary servitude, peonage, debt bondage, or slavery.
3. "Private entity":

i. Means any entity other than a State, local government, Indian tribe, or foreign public entity, as those terms are defined in 2 CFR 175.25.

ii. Includes:

A. A nonprofit organization, including any nonprofit institution of higher education, hospital, or tribal organization other than one included in the definition of Indian tribe at 2 CFR 175.25(b).

B. A for-profit organization.

4. "Severe forms of trafficking in persons," "commercial sex act," and "coercion" have the meanings given at section 103 of the TVPA, as amended (22 U.S.C. 7102).

14. The Sponsor understands and agrees that in accordance with 49 USC 47111, and the Airport District Office's concurrence, that no payments totaling more than 97.5 percent of United States Government's share of the project's estimated allowable cost may be made before the project is determined to be satisfactorily completed. Satisfactorily complete means the following: (1) The project results in a complete, usable unit of work as defined in the grant agreement; and (2) The sponsor submits necessary documents showing that the project is substantially complete per the contract requirements, or has a plan (that FAA agrees with) that addresses all elements contained on the punch list.
15. The Sponsor shall provide for a Single Audit in accordance with Office of Management and Budget Circular A-133. The Sponsor shall submit the Single Audit reporting package to the Federal Audit Clearinghouse on the Federal Audit Clearinghouse's Internet Data Entry System at <http://harvester.census.gov/fac/collect/ddeindex.html>. The Sponsor shall also provide one copy of the completed A-133 Audit to the Denver Airports District Office.
16. The Sponsor agrees to comply with the Assurances attached to this offer, which replaces the assurances that accompanied the Application for Federal Assistance.

The Sponsor's acceptance of this Offer and ratification and adoption of the Project Application incorporated herein shall be evidenced by execution of this instrument by the Sponsor, as hereinafter provided, and this Offer and Acceptance shall comprise a Grant Agreement, as provided by the Act, constituting the contractual obligations and rights of the United States and the Sponsor with respect to the accomplishment of the Project and compliance with the assurances and conditions as provided herein. Such Grant Agreement shall become effective upon the Sponsor's acceptance of this Offer.

**UNITED STATES OF AMERICA  
FEDERAL AVIATION ADMINISTRATION**

\_\_\_\_\_  
Acting Manager, Denver Airports District Office

**Part II - Acceptance**

The Sponsor does hereby ratify and adopt all assurances, statements, representations, warranties, covenants, and agreements contained in the Project Application and incorporated materials referred to in the foregoing Offer and does hereby accept this Offer and by such acceptance agrees to comply with all of the terms and conditions in this Offer and in the Project Application.

I declare under penalty of perjury that the foregoing is true and correct. Knowing and willfully providing false information to the Federal government is a violation of 18 U.S.C Section 1001 (False Statements) and could subject you to fines, imprisonment or both.

Executed this \_\_\_\_\_ day of \_\_\_\_\_, 2013.

**COUNTY OF LARAMIE, WYOMING**

(SEAL)

\_\_\_\_\_  
Sponsor's Designated Official Representative

Attest: \_\_\_\_\_

Title: \_\_\_\_\_

Title: \_\_\_\_\_

**Certificate of Sponsor's Attorney**

I, \_\_\_\_\_, acting as Attorney for the Sponsor do hereby certify:

That in my opinion the Sponsor is empowered to enter into the foregoing Grant Agreement under the laws of the State of Wyoming. Further, I have examined the foregoing Grant Agreement and the actions taken by said Sponsor and Sponsor's official representative has been duly authorized and that the execution thereof is in all respects due and proper and in accordance with the laws of the said State and the Act. In addition, for grants involving projects to be carried out on property not owned by the Sponsor, there are no legal impediments that will prevent full performance by the Sponsor. Further, it is my opinion that the said Grant Agreement constitutes a legal and binding obligation of the Sponsor in accordance with the terms thereof.

Dated at \_\_\_\_\_ this \_\_\_\_\_ day of \_\_\_\_\_, 2013.

\_\_\_\_\_  
Signature of Sponsor's Attorney

The Sponsor does hereby ratify and adopt all assurances, statements, representations, warranties, covenants, and agreements contained in the Project Application and incorporated materials referred to in the foregoing Offer and does hereby accept this Offer and by such acceptance agrees to comply with all of the terms and conditions in this Offer and in the Project Application.

I declare under penalty of perjury that the foregoing is true and correct. Knowing and willfully providing false information to the Federal government is a violation of 18 U.S.C Section 1001 (False Statements) and could subject you to fines, imprisonment or both.

Executed this \_\_\_\_\_ day of \_\_\_\_\_, 2013.

**CITY OF CHEYENNE, WYOMING**

(SEAL)

\_\_\_\_\_  
Sponsor's Designated Official Representative

Attest: \_\_\_\_\_ Title: \_\_\_\_\_

Title: \_\_\_\_\_

**Certificate of Sponsor's Attorney**

I, \_\_\_\_\_, acting as Attorney for the Sponsor do hereby certify:

That in my opinion the Sponsor is empowered to enter into the foregoing Grant Agreement under the laws of the State of Wyoming. Further, I have examined the foregoing Grant Agreement and the actions taken by said Sponsor and Sponsor's official representative has been duly authorized and that the execution thereof is in all respects due and proper and in accordance with the laws of the said State and the Act. In addition, for grants involving projects to be carried out on property not owned by the Sponsor, there are no legal impediments that will prevent full performance by the Sponsor. Further, it is my opinion that the said Grant Agreement constitutes a legal and binding obligation of the Sponsor in accordance with the terms thereof.

Dated at \_\_\_\_\_ this \_\_\_\_\_ day of \_\_\_\_\_, 2013.

\_\_\_\_\_  
Signature of Sponsor's Attorney

The Sponsor does hereby ratify and adopt all assurances, statements, representations, warranties, covenants, and agreements contained in the Project Application and incorporated materials referred to in the foregoing Offer and does hereby accept this Offer and by such acceptance agrees to comply with all of the terms and conditions in this Offer and in the Project Application.

I declare under penalty of perjury that the foregoing is true and correct. Knowing and willfully providing false information to the Federal government is a violation of 18 U.S.C Section 1001 (False Statements) and could subject you to fines, imprisonment or both.

Executed this \_\_\_\_\_ day of \_\_\_\_\_, 2013.

**CHEYENNE AIRPORT BOARD, WYOMING**

(SEAL)

\_\_\_\_\_  
Sponsor's Designated Official Representative

Attest: \_\_\_\_\_ Title: \_\_\_\_\_

Title: \_\_\_\_\_

**Certificate of Sponsor's Attorney**

I, \_\_\_\_\_, acting as Attorney for the Sponsor do hereby certify:

That in my opinion the Sponsor is empowered to enter into the foregoing Grant Agreement under the laws of the State of Wyoming. Further, I have examined the foregoing Grant Agreement and the actions taken by said Sponsor and Sponsor's official representative has been duly authorized and that the execution thereof is in all respects due and proper and in accordance with the laws of the said State and the Act. In addition, for grants involving projects to be carried out on property not owned by the Sponsor, there are no legal impediments that will prevent full performance by the Sponsor. Further, it is my opinion that the said Grant Agreement constitutes a legal and binding obligation of the Sponsor in accordance with the terms thereof.

Dated at \_\_\_\_\_ this \_\_\_\_\_ day of \_\_\_\_\_, 2013.

\_\_\_\_\_  
Signature of Sponsor's Attorney